

Anurag v. State of Uttar Pradesh

Allahabad High Court · Division Bench · 18 December 2019 · Writ-C No. 41978 of 2019 · Writ-C No. 41978 of 2019 · **Writ disposed; hearing before EE directed; s.127 left open**

HEADNOTE

A consumer sought certiorari to quash an Executive Engineer's order and stop coercive recovery, alleging no hearing and non-compliance with the U.P. Electricity Supply Code, 2005. The Court did not quash the order or decide those complaints. It directed the petitioner to appear before the Executive Engineer with objections and evidence, required a speaking final order, stayed coercive action for a limited period, and left an appeal under section 127 of the Electricity Act, 2003 open if he remained aggrieved.

FACTUAL SUMMARY

Anurag petitioned the Allahabad High Court to quash an order dated 3 October 2018 of the Executive Engineer (respondent no. 2). He alleged that the electricity department was taking coercive recovery steps, including a recovery citation, without giving him a hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and for the electricity department were heard. The Division Bench did not examine the validity of the impugned order, the citation, or the alleged Code breaches.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

writ disposed by directing hearing before EE then section 127 appeal

HOLDING

The Court disposed of the writ without quashing the 3 October 2018 order. It directed the petitioner to appear before the Executive Engineer on 6 January 2020 with objections and evidence; the Engineer was then to pass a speaking and reasoned final order within four weeks. Coercive action was stayed for seven weeks or until disposal of the objection, whichever was earlier. Default in filing objections would vacate the stay; failure to appear would revive the recovery citation. If aggrieved by the final order, the petitioner could appeal under section 127 of the Electricity Act, 2003. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing the Executive Engineer to hear the petitioner's objections and pass a speaking final order, the Court left it open to the petitioner, if still aggrieved, to appeal under section 127 of the Electricity Act, 2003, and did not decide the merits of the recovery. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 3 OCTOBER 2018 ORDER AND RECOVERY CITATION

The writ was disposed without examining whether the Executive Engineer's order or the recovery citation complied with the Supply Code, 2005, or whether a hearing had been given. ¶ 1